RIGHT OF FIRST REFUSAL AND CO-SALE AGREEMENT

Governing provision

The transfer recorded by certificate CS-0114 was approved by written consent.

Recitals and Parties

The parties to this Agreement are Helioscope Robotics, Inc., a Delaware corporation whose shares are the subject of the restrictions set out below; the persons identified on Schedule A, comprising the three founders and the early exercisers who hold Common Stock issued on the exercise of awards, each of whom is a Key Holder; and the persons identified on Schedule B, comprising the holders of each outstanding series of Preferred Stock, each of whom is an Investor.

The Investors have agreed to purchase shares of Series B Preferred Stock under a purchase agreement of even date (the Purchase Agreement), and it is a condition to the closing under that agreement that the Key Holders accept the restrictions on the transfer of their shares set out below, so that the Company and the Investors have the opportunity to purchase shares a Key Holder proposes to sell and, failing that, to participate in the sale.

The parties accordingly agree as follows. This Agreement supersedes the right of first refusal and co-sale agreement entered into in connection with the Series A financing as to the shares subject to it, and a right that has accrued under that agreement in respect of a transfer completed before the date of this Agreement is unaffected.

Section 1 - Definitions

Capital Stock means the Common Stock and the Preferred Stock of the Company. Change of Control has the meaning given in the Voting Agreement. Company Notice means the notice the Company gives under Section 4(a) opening the period during which the Investors may exercise the Secondary Refusal Right. Immediate Family Member means a spouse, domestic partner, lineal descendant or antecedent, sibling, or the spouse of any of them, and includes a person in that relationship by adoption.

Key Holder means a holder of Common Stock listed on Schedule A and each permitted transferee of such a holder who has executed a joinder. Proposed Key Holder Transfer means a transfer, or a proposed transfer, by a Key Holder of any Transfer Stock, other than a permitted transfer under Section 7. Prospective Transferee means the person to whom a Key Holder proposes to transfer Transfer Stock.

Proposed Transfer Notice means the notice a Key Holder must deliver under Section 2. Right of First Refusal means the Company's right under Section 3, and Secondary Refusal Right means the Investors' right under Section 4. Right of Co-Sale means the right under Section 6. Transfer Stock means the shares of Capital Stock a Key Holder proposes to transfer, and Undersubscription Notice means the notice the Company gives under Section 4(d).

Section 2 - Notice of a Proposed Transfer

A Key Holder proposing to make a Proposed Key Holder Transfer must deliver a Proposed Transfer Notice to the Company and to each Investor before making it. No Key Holder may transfer Transfer Stock unless the Proposed Transfer Notice has been delivered and the periods in Schedule 2 have expired or the rights they open have been exercised and completed.

The Proposed Transfer Notice must state the number of shares of Transfer Stock by class and, where the shares are certificated, the certificate reference for each; the name and address of the Prospective Transferee and, where the Prospective Transferee is an entity, the identity of the person controlling it; the price and the form of consideration; and the other material terms and conditions of the proposed transfer, including any indemnity, escrow or deferred payment.

The Proposed Transfer Notice must be accompanied by a copy of any written offer, letter of intent or draft agreement received from the Prospective Transferee, and must contain a representation by the Key Holder that the offer is bona fide, that it is made at arm's length, that the Key Holder has informed the Prospective Transferee of the restrictions in this Agreement, and that the Prospective Transferee has agreed to take the Transfer Stock subject to them.

A Proposed Transfer Notice that omits a required particular does not start any period in Schedule 2, and the Company must notify the Key Holder promptly of the omission. Where a term of the proposed transfer changes after the Proposed Transfer Notice has been delivered and before the transfer is completed, the Key Holder must deliver a revised Proposed Transfer Notice, and the periods in Schedule 2 begin again from the delivery of the revised notice.

Section 3 - Right of First Refusal of the Company

The Company has the right, but not the obligation, to purchase all or any part of the Transfer Stock described in a Proposed Transfer Notice, at the price and on the terms described in it, by giving notice of its election to the Key Holder and to each Investor within the period stated in Schedule 2. The Company's notice must state the number of shares it elects to purchase.

The Company may exercise the Right of First Refusal in part, in which case the balance of the Transfer Stock is subject to the Secondary Refusal Right in Section 4 and, to the extent not taken, to the Right of Co-Sale in Section 6. An election by the Company is irrevocable and binds it to complete the purchase at the closing under Section 5(a), subject only to the Key Holder's ability to deliver title.

The Company may assign the Right of First Refusal, in whole or in part, to one or more Investors or to a person the Board of Directors approves, and an assignee exercises the right in its own name and on the same terms. An assignment does not extend a period in Schedule 2 and does not relieve the assignee of the obligation to fund at the closing.

Where the consideration described in the Proposed Transfer Notice is other than cash, the Company may pay the cash value of that consideration, determined in good faith by the Board of Directors and stated in the Company's election notice. A Key Holder that disputes the determination may, within 10 days of the election notice, require the matter to be referred to an independent appraiser jointly selected by the Key Holder and the Company, whose determination is final; the cost of the appraiser is borne equally unless the appraiser's determination differs from the Board's by more than the tolerance stated in the Purchase Agreement, in which case the Company bears it.

Section 4 - Secondary Refusal Right of the Investors

Where the Company does not elect to purchase all of the Transfer Stock, it must give a Company Notice to each Investor within the period stated in Schedule 2, stating the number of shares of Transfer Stock the Company has not elected to purchase and attaching the Proposed Transfer Notice. Each Investor may then elect to purchase its pro rata share of that balance by notice given within the period stated in Schedule 2.

An Investor's pro rata share of the balance is the ratio of the shares of Capital Stock that Investor holds to the shares of Capital Stock held by all Investors, each determined on the as-converted basis the Purchase Agreement specifies. Holdings of affiliated Investors and of funds under common management are aggregated for the purpose of that calculation and those Investors may allocate the aggregate entitlement among themselves.

Where one or more Investors do not elect to purchase their full pro rata share, the Company must give an Undersubscription Notice to the Investors that elected to purchase their full pro rata share, and those Investors may elect within the period stated in Schedule 2 to purchase the unsubscribed balance, allocated among them in proportion to the shares of Capital Stock each holds.

If, after the periods in Schedule 2 have expired, the Company and the Investors together have not elected to purchase all of the Transfer Stock, then neither the Company nor any Investor is obliged to purchase any of it, every election made in respect of that Proposed Transfer Notice lapses, and the Key Holder may transfer the whole of the Transfer Stock to the Prospective Transferee in accordance with Section 8, subject to the Right of Co-Sale. The parties have adopted an all-or-nothing construction deliberately, so that a Key Holder is not left holding an unsaleable residue.

Section 5 - Closing, Failure to Fund and Reallocation

The closing of a purchase under Section 3 or Section 4 takes place at the Company's principal office within 30 days of the expiry of the last period in Schedule 2 applicable to the Proposed Transfer Notice, or at the later date the Key Holder and the purchasing parties agree. At the closing the Key Holder delivers the certificates for the Transfer Stock endorsed for transfer, or the book-entry transfer instruction, together with any consent required to transfer title, and the purchasing parties pay the purchase price.

Where an electing party fails to pay at the closing, the Company must notify the Key Holder and the other electing parties within the period stated in Schedule 2, and the shares that party had elected to purchase are offered to the other electing parties, which may take them in proportion to the shares they had elected to purchase, by notice given within 10 days. An electing party that has failed to fund may not participate in that reallocation.

If the shares are not taken up on the reallocation, the Key Holder may transfer the whole of the Transfer Stock to the Prospective Transferee in accordance with Section 8, and the electing party that failed to fund is liable to the Key Holder for the costs the Key Holder incurred by reason of the failure. A failure to fund does not affect that party's rights in respect of a later Proposed Transfer Notice.

Section 6 - Right of Co-Sale

To the extent the Company and the Investors do not elect to purchase all of the Transfer Stock, each Investor may participate in the transfer to the Prospective Transferee by giving notice to the Key Holder and the Company within the period stated in Schedule 2, stating the number of shares it wishes to include. An Investor that exercises the Right of Co-Sale is not obliged to participate in the sale of any later Transfer Stock.

The number of shares an Investor may include is the number bearing to the Transfer Stock the same ratio as the shares of Capital Stock that Investor holds bears to the shares of Capital Stock held by the Key Holder and all participating Investors together, each determined on the as-converted basis the Purchase Agreement specifies. Where an Investor wishes to include shares of Preferred Stock, it must convert them into Common Stock before the closing unless the Prospective Transferee agrees to purchase them in their existing form.

A participating Investor must deliver the certificates for the shares it is including, endorsed for transfer, or the book-entry transfer instruction, within the period stated in Schedule 2, and the Key Holder must deliver them to the Prospective Transferee at the closing against payment. The consideration is paid to the participating Investors and the Key Holder in proportion to the shares each has sold, and a participating Investor bears its own transfer taxes and its own costs.

The Key Holder must procure the Prospective Transferee's agreement to purchase the shares the participating Investors include, on the same terms as it purchases the Transfer Stock. Where the Prospective Transferee refuses to purchase those shares, or will purchase only a smaller total, the Key Holder must reduce the number of its own shares included in the sale so that the participating Investors sell the full number they elected to include, and the Key Holder may not complete the transfer on any other basis.

A participating Investor is not required to make a representation to the Prospective Transferee beyond title, authority and organization, is not required to give an indemnity other than in respect of a breach of its own representation, and is not required to accept a restrictive covenant. Where the Prospective Transferee requires more, the Investor may withdraw from the co-sale, and the Key Holder must reduce the number of shares it sells accordingly or abandon the transfer.

If a Key Holder transfers Transfer Stock in contravention of the Right of Co-Sale, each Investor that would have been entitled to participate may require the Key Holder to purchase from it the number of shares that Investor would have been entitled to include, at the price and on the terms on which the Key Holder sold, by demand made within the period stated in Schedule 2. The Key Holder must complete that purchase within 30 days of the demand and must in addition reimburse that Investor's costs of enforcing this subsection, including reasonable attorneys' fees.

Governing provision and cross-references

The transfer recorded by certificate CS-0114 was approved by written consent.

This provision is read with the defined terms, the schedules to this instrument, and any consent or waiver recorded against it; a summary prepared from it does not vary it.

Section 7 - Permitted Transfers

The rights in Sections 3, 4 and 6 do not apply to a transfer by a Key Holder to an Immediate Family Member, to a trust established for the benefit of the Key Holder or an Immediate Family Member, to a person taking on the death of the

Key Holder, to a transferee under a decree of divorce or a marital property settlement, to an affiliate of a Key Holder that is an entity, to the partners or members of a Key Holder that is an entity by way of distribution, or to the Company on a repurchase under an equity award agreement.

The rights in Sections 3, 4 and 6 also do not apply to a transfer of a number of shares the Board of Directors, including the directors designated by the holders of Preferred Stock, has approved in advance as de minimis, on a request made within the period stated in Schedule 2. An approval given under this subsection applies to the transfer described in the request and does not create a standing exemption.

Every permitted transfer is subject to the following conditions: the Key Holder must give the Company prior notice within the period stated in Schedule 2, identifying the transferee and the relationship relied on; the transferee must execute a joinder to this Agreement, to the Voting Agreement and to any market standoff undertaking the Key Holder has given; the shares remain subject to the restrictions in this Agreement in the transferee's hands; and the transfer must not be to a competitor of the Company.

A permitted transfer does not release the transferring Key Holder from its obligations under this Agreement in respect of the shares it continues to hold, and the shares transferred are aggregated with the transferor's remaining shares for the purpose of any threshold in this Agreement. The parties record that one permitted transfer notice for an estate planning trust is presently outstanding and that the transfer may not be recorded until the joinder is delivered.

Section 8 - Completion after the Rights Lapse

Where the rights in Sections 3, 4 and 6 have lapsed or have been satisfied, the Key Holder may transfer the Transfer Stock to the Prospective Transferee within the period stated in Schedule 2, at a price not less than, and on terms no more favourable to the Prospective Transferee than, those described in the Proposed Transfer Notice. A transfer at a lower price or on more favourable terms is a prohibited transfer.

If the Key Holder does not complete the transfer within that period, the Transfer Stock again becomes subject to Sections 2 to 6 and the Key Holder must deliver a fresh Proposed Transfer Notice before transferring it. A transfer to a person other than the Prospective Transferee named in the Proposed Transfer Notice requires a fresh Proposed Transfer Notice whatever the price.

It is a condition of the transfer that the Prospective Transferee execute a joinder to this Agreement, to the Voting Agreement and to any market standoff undertaking the transferring Key Holder has given, and deliver to the Company an instrument of transfer in the form the Company prescribes. The Company must not record the transfer until those documents are delivered.

Section 9 - Prohibited Transfers and Remedies

A purported transfer of Transfer Stock in contravention of this Agreement is void, confers no right on the purported transferee, and does not make the purported transferee a stockholder of the Company for any purpose. The Company must not record the transfer in its stock ledger, must not recognise the purported transferee as a holder, and must not pay a distribution or count a vote in respect of the shares purportedly transferred.

The Company must instruct its transfer agent, and the provider of the platform on which its capitalization of record is maintained, not to effect a transfer of shares held by a Key Holder without evidence that this Agreement has been complied with, and must refuse to issue a new certificate or record a new book-entry notation in respect of a prohibited transfer.

In addition to the put remedy in Section 6(g), the Company and each Investor is entitled to specific performance and to injunctive relief to restrain a prohibited transfer or to compel compliance with Sections 2 to 8, and the parties agree that damages alone would not be an adequate remedy for a breach of those Sections. A party seeking such relief is not required to post a bond.

The remedies in this Agreement are cumulative. A failure to pursue a remedy in respect of one prohibited transfer is not a waiver of the right to pursue it in respect of another, and a subsequent consent to a transfer does not validate a transfer that was prohibited when it was made.

Schedule 1 - Transfer restriction matrix by type of transfer

Transfer type	Company right of first refusal	Investor secondary refusal right	Right of co-sale	Board consent	Legend required
Sale to a third party for cash	Applies in full	Applies to the balance not taken	Applies to the balance not taken	Not required if the periods are observed	Yes, on the transferred shares
Sale for a promissory note	Applies, with the cash value determined under Section 3(d)	Applies on the same determined value	Applies, participation payable in the same form	Not required	Yes
Sale for equity of the purchaser	Applies, subject to the valuation process	Applies on the determined value	Applies, subject to the purchaser accepting the co-sale shares	Required where the purchaser is a competitor	Yes
Pledge to a lender as collateral	Does not apply on the grant of the pledge	Does not apply on the grant	Does not apply on the grant	Required before the pledge is granted	Yes, with a pledge notation
Foreclosure on a pledge	Applies as if the lender were the transferor	Applies	Applies	Not required; notice to the Company required	Yes
Gift to an Immediate Family Member	Exempt as a permitted transfer	Exempt	Exempt	Not required; prior notice required	Yes, transferee joins
Transfer to a trust for estate planning	Exempt as a permitted transfer	Exempt	Exempt	Not required; prior notice and joinder required	Yes, transferee joins
Transfer on death to an estate or beneficiary	Exempt as a permitted transfer	Exempt	Exempt	Not required; notice on probate	Yes, transferee joins
Transfer under a divorce decree	Exempt as a permitted transfer	Exempt	Exempt	Not required; notice and joinder required	Yes, transferee joins
Transfer to an affiliate of an entity Key Holder	Exempt as a permitted transfer	Exempt	Exempt	Not required; joinder required	Yes, transferee joins
Company repurchase of unvested shares at cost	Not applicable; the Company is the transferee	Does not apply	Does not apply	Board approval of the repurchase required	Not applicable, shares retired
Net settlement of an award to cover an exercise price	Not applicable; no transfer to a third party	Does not apply	Does not apply	Administrator action under the plan	Yes, on the shares issued
Share withholding to satisfy a tax obligation	Not applicable	Does not apply	Does not apply	Administrator action under the plan	Yes, on the shares issued
Transfer to a competitor of the Company	Applies in full	Applies	Applies	Required, and may be refused for that reason alone	Yes
Secondary sale into a tender offer for Common Stock	Applies unless the Company sponsors the offer	Applies	Applies	Required where the Company does not sponsor the offer	Yes
Sale of a de minimis number of shares	Exempt where approved as de minimis	Exempt	Exempt	Board approval including the Preferred designees required	Yes
Distribution by an entity Key Holder to its partners	Exempt as a permitted transfer	Exempt	Exempt	Not required; joinder required	Yes, transferees join
Transfer by an Investor of Preferred Stock	Does not apply; this Agreement restricts Key Holders	Does not apply	Does not apply	Not required	Yes, under the other agreements
Conversion of Preferred Stock into Common Stock	Not a transfer for the purposes of this Agreement	Does not apply	Does not apply	Not required	Yes, on the shares issued
Transfer to the Company in a redemption	Not applicable	Does not apply	Does not apply	As the certificate of incorporation requires	Not applicable, shares retired
Transfer in a Sale of the Company subject to the drag	Does not apply; the drag governs	Does not apply	Does not apply	As the Voting Agreement requires	Not applicable on the closing
Purported transfer in violation of this Agreement	Void; the Company must not record it	The aggrieved Investor has the remedy in Section 6(g)	The aggrieved Investor has the remedy in Section 6(g)	Not curable by later consent	Not applicable, transfer void

Section 10 - Legends, Transfer Agent Instructions and Legend Removal

Each certificate representing shares held by a Key Holder, and each book-entry notation for such shares, must bear a legend recording that the shares have not been registered under the Securities Act of 1933, as amended and may not be transferred except pursuant to an effective registration statement or an available exemption, and recording that the shares are subject to the restrictions on transfer set forth in a right of first refusal and co-sale agreement, a copy of which is available from the Company on request. The restriction is of a kind Delaware law permits a corporation to impose (8 Del. C. § 202) and is noted on the stock ledger the corporation is required to maintain (8 Del. C. § 219).

The Company must deliver a copy of the legend and of this Section to its transfer agent and to the provider of its capitalization platform, must instruct each of them not to effect a transfer without an officer certificate confirming compliance with this Agreement, and must give a corresponding instruction in respect of shares held in uncertificated form, for which the notation required by the Delaware corporation statute serves in place of the legend.

The Company must, on the request of the holder of shares bearing the legend and on delivery of the certificate or opinion the transfer agent requires, instruct the transfer agent to remove so much of the legend as records the restrictions in this Agreement, where those restrictions have terminated under Section 11. The Company bears the cost of an opinion required for that purpose, and the securities law portion of the legend is removed only where the securities may then be sold without restriction.

After a permitted transfer or a purchase under Section 3, Section 4 or Section 6 has been completed, the Company must reconcile its stock ledger to the certificates issued and cancelled and to the book-entry notations recorded, and must provide the reconciled extract to a party on request. The parties record that one historical secondary transfer approved by written consent was joined by the transferee but that the legend endorsement was never reflected in the ledger, and that the Company has undertaken to correct the ledger and to procure the endorsement.

Section 11 - Term and Termination

The restrictions in Sections 2 to 8 terminate on the earlier of the closing of a Qualified Public Offering as defined in the certificate of incorporation and the closing of a Change of Control. This Agreement terminates in its entirety on the later of those events and the completion of any transaction then in progress under Sections 2 to 8.

The put remedy in Section 6(g) survives the termination of the restrictions in respect of a transfer that occurred before termination, and remains exercisable for the period stated in Schedule 2 after the aggrieved Investor receives notice of the transfer. The obligations in Section 10 survive to the extent necessary to remove a legend and to reconcile the ledger.

Termination does not affect the Voting Agreement, the Investors' Rights Agreement or the certificate of incorporation, each of which terminates as its own terms provide, and does not release a Key Holder from a market standoff undertaking given to an underwriter.

Schedule 2 - Notice and election periods under this Agreement

Event	Notice given by	Recipient	Period	Consequence if no response
Proposed Transfer Notice	Key Holder	Company and each Investor	Delivered before any transfer	No transfer may be made
Company election under the right of first refusal	Company	Key Holder and each Investor	15 days from the Proposed Transfer Notice	The Company's right lapses for that transfer
Company Notice opening the secondary refusal period	Company	Each Investor	Within 5 days of the Company's election	The Investors' period runs from the election date
Investor election under the secondary refusal right	Investor	Company and Key Holder	15 days from the Company Notice	That Investor's right lapses for that transfer
Undersubscription Notice	Company	Fully participating Investors	Within 5 days of the election period closing	The unsubscribed balance is released to the Key Holder
Election under the Undersubscription Notice	Fully participating Investor	Company	10 days from the Undersubscription Notice	That Investor takes no additional shares
Co-sale election	Investor	Key Holder and Company	20 days from the Proposed Transfer Notice	That Investor does not participate in the sale
Delivery of certificates for co-sale shares	Participating Investor	Key Holder or the paying agent	10 days from the co-sale election	The Key Holder may proceed without those

Event	Notice given by	Recipient	Period	Consequence if no response
				shares
Notice that the Prospective Transferee refuses co-sale shares	Key Holder	Participating Investors	Within 5 days of the refusal	The Key Holder may not complete the transfer
Completion of a transfer after the rights lapse	Key Holder	Company	45 days from the expiry of the last period	The shares must be re-offered under Section 2
Notice of a change in the terms of a proposed transfer	Key Holder	Company and each Investor	Before completion of the transfer	The transfer may not be completed on the new terms
Notice of a permitted transfer	Key Holder	Company	10 days before the transfer	The Company may decline to record the transfer
Delivery of a joinder by a permitted transferee	Transferee	Company	At or before the transfer	The Company may not record the transfer
Notice of a proposed pledge	Key Holder	Company	20 days before the pledge is granted	The pledge is a prohibited transfer
Notice of a foreclosure on a pledge	Lender or Key Holder	Company and each Investor	Promptly on the foreclosure	The rights in Sections 3 to 6 apply on the Company's notice
Request for approval of a de minimis transfer	Key Holder	Board of Directors	30 days before the transfer	The transfer is not exempt
Notice of a failure to fund an election	Company	Key Holder and electing parties	Within 5 days of the funding date	The shares are reallocated under Section 5
Request for removal of a legend	Holder of the shares	Company and transfer agent	At any time when the condition is satisfied	The legend remains in place
Notice of a prohibited transfer	Any party	Company and each Investor	Promptly on becoming aware	The remedy in Section 6(g) remains available
Demand under the put remedy	Aggrieved Investor	Key Holder in breach	90 days from notice of the prohibited transfer	The put remedy lapses for that transfer

Section 12 - Pledges, Encumbrances and Foreclosure

A Key Holder may not pledge, hypothecate or otherwise encumber its shares without the prior approval of the Board of Directors including the directors designated by the holders of Preferred Stock, requested within the period stated in Schedule 2. The grant of a pledge is not itself subject to the rights in Sections 3, 4 and 6, and a pledge granted without that approval is a prohibited transfer.

A pledge approved under this Section must be granted on terms under which the pledgee acknowledges this Agreement, agrees that a foreclosure is subject to Sections 2 to 6 as if the pledgee were a Key Holder, and agrees not to exercise a voting right in respect of the pledged shares before foreclosure. The Company records the pledge in its ledger and adds a pledge notation to the legend.

On a foreclosure, the pledgee or the Key Holder must notify the Company and each Investor promptly, and the Company must then give a Company Notice as if a Proposed Transfer Notice had been delivered, stating the terms on which the pledgee proposes to dispose of the shares. The rights in Sections 3, 4 and 6 apply to that disposal, and the periods in Schedule 2 run from the Company Notice.

Section 13 - Transfers by Operation of Law, on Death and on Divorce

A transfer of shares by operation of law, including a transfer to a personal representative on the death of a Key Holder, to a trustee in bankruptcy, or to a spouse or former spouse under a decree of divorce or a marital property settlement, is a permitted transfer under Section 7, and the transferee takes the shares subject to this Agreement in the transferor's place.

The transferee must deliver a joinder to the Company promptly after the transfer, together with the letters, decree or order evidencing its title, and the Company must not record the transfer until those documents are delivered. Until the transfer is recorded, the Company may continue to treat the transferor as the holder of record for the purpose of a notice under this Agreement.

A subsequent transfer by the transferee is a Proposed Key Holder Transfer and is subject to Sections 2 to 8, whether or not the transferee is an individual and whether or not the transferee is a Key Holder listed on Schedule A. A personal representative that sells shares in the course of administering an estate must comply with Section 2 before doing so.

Section 14 - Transfers to a Competitor

A Key Holder may not transfer shares to a person that competes with the Company, as the Purchase Agreement defines a competitor, without the prior approval of the Board of Directors including the directors designated by the holders of Preferred Stock. The Board may refuse the approval for that reason alone and is not obliged to give a further reason.

Where a Key Holder proposes a transfer to a person it does not believe to be a competitor, and the Company informs the Key Holder that it regards the Prospective Transferee as a competitor, the Key Holder may require the question to be determined by the Board of Directors at its next meeting, and the periods in Schedule 2 are suspended until the determination is made. The determination is recorded in the minutes.

This Section applies to a permitted transfer as it applies to a Proposed Key Holder Transfer, so that a transfer to an affiliate or to a trust may not be used to place shares in the hands of a competitor. The Company may require the transferee to represent that it is not a competitor and does not act for one.

Section 15 - Interaction with Repurchase Rights under Award Agreements

Nothing in this Agreement limits a repurchase right in favour of the Company arising under an equity award agreement, an early exercise agreement or a stock restriction agreement, and a repurchase by the Company under such a right is not a Proposed Key Holder Transfer. Where a repurchase right and the Right of First Refusal both apply to the same shares, the repurchase right is exercised first.

A Key Holder that proposes to transfer shares subject to an unexpired repurchase right must disclose that fact in the Proposed Transfer Notice, identify the number of shares affected, and state the date on which the right lapses. The Company may elect to exercise the repurchase right in respect of those shares instead of the Right of First Refusal, and the Proposed Transfer Notice then applies only to the balance.

Where the Company repurchases shares under an award agreement, it must record the cancellation in the ledger, notify the Investors of the repurchase in the quarterly capitalization delivery required by the Investors' Rights Agreement, and treat the repurchased shares in accordance with the plan documents. A repurchase does not give rise to a co-sale right.

Section 16 - Representations of the Parties

Each Key Holder represents that it holds the shares shown against its name on Schedule A free of any encumbrance other than one disclosed to the Company in writing, that it has full power and authority to enter into and perform this Agreement, and that no transfer of its shares is pending other than one disclosed in a notice given under this Agreement.

Each Investor represents that it holds the shares shown against its name on Schedule B, that its execution and performance of this Agreement have been duly authorized, and that it is acquiring any shares it purchases under Section 3, 4 or 5 for its own account and not with a view to a distribution that would require registration under the Securities Act of 1933, as amended.

No party relies on advice given by counsel to another party in entering into this Agreement. Counsel to the Company prepared it, counsel to the Investors reviewed it, and no Key Holder was separately represented; each Key Holder was told in writing that it could retain its own adviser at its own cost and confirms that it either did so or decided not to. The representations in this Section are repeated whenever a party delivers or receives a notice under Section 2.

Section 17 - Assignment, Successors and Additional Parties

This Agreement binds and benefits the successors and permitted assigns of each party. A Key Holder may not assign its rights or obligations under this Agreement except in connection with a permitted transfer of its shares to a transferee that has executed a joinder, and an assignment made otherwise is void as between the parties.

Admission of a new party requires only a signed joinder in the form of Exhibit A and an entry on the relevant Schedule: a subscriber for Preferred Stock is admitted to Schedule B and takes the rights of an Investor from the date of its entry, and a service provider who receives Common Stock on the settlement or exercise of an award is admitted to Schedule A and takes the obligations of a Key Holder. Neither admission requires an amendment of this Agreement or the consent of a party already bound by it.

The Company must not issue shares of Common Stock to a service provider without obtaining a joinder to this Agreement, except where the Board of Directors determines that the number of shares is de minimis and records the determination. A failure to obtain a joinder does not relieve the holder of the restrictions in this Agreement where the holder took with notice of them.

Section 18 - Governing Law, Forum and Interpretation

This Agreement is governed by the laws of the State of Delaware. The parties chose Delaware law because the transfer restrictions in this Agreement operate against the certificate of incorporation and against the stock ledger the Delaware corporation statute requires the Company to maintain, and because the remedy in Section 6(g) is intended to be construed consistently with that statute.

A proceeding to enforce this Agreement, including a proceeding to restrain a prohibited transfer, to compel the delivery of shares under Section 5 or Section 6, or to enforce the put remedy, must be brought in the Court of Chancery of the State of Delaware or, if that court lacks subject matter jurisdiction, in another state or federal court sitting in that State, and each party consents to personal jurisdiction there.

In this Agreement a reference to a Section or a Schedule is a reference to a Section or Schedule of this Agreement; the words include and including are not words of limitation; a period expressed in days is a period of calendar days, and where the last day of a period is not a business day the period ends on the next business day; and headings are for convenience only and do not affect construction.

Section 19 - Funding of a Purchase and Company Capacity

Where the Company exercises the Right of First Refusal it must fund the purchase out of assets lawfully available for the purpose, and must not fund it by incurring indebtedness above the threshold that requires the approval of the holders of Preferred Stock unless that approval has been given. Where the Company is unable to fund a purchase lawfully, its election lapses and the shares pass to the Secondary Refusal Right in Section 4.

The Company must not exercise the Right of First Refusal for the purpose of preventing a transfer it could otherwise refuse under Section 14, and must not exercise it in respect of shares it has no intention of retaining or retiring. Where the Company assigns the right under Section 3(c), the assignee funds the purchase and the Company remains responsible for recording the transfer.

Shares purchased by the Company under this Agreement are retired or held as treasury shares as the Board of Directors resolves, and the resolution must be recorded with the transfer. Shares purchased by an Investor are held subject to the agreements to which that Investor is party, and the legend on them is conformed accordingly.

Section 20 - Tax Matters on a Transfer

Each party bears its own taxes arising on a transfer under this Agreement, and a transferring Key Holder bears the transfer taxes on the shares it sells. The Company may withhold from a payment it makes under this Agreement the amount it is required by law to withhold, and must provide the recipient with the documentation evidencing the withholding.

A transferring Key Holder must deliver to the Company the tax certifications the Company reasonably requires in order to make a payment without withholding, and must notify the Company if a certification previously given has ceased to be accurate. The Company is not obliged to complete a purchase before it has received those certifications.

The parties acknowledge that a transfer may affect the availability of the qualified small business stock treatment the Internal Revenue Code provides (I.R.C. § 1202) in respect of the transferred shares, and that a Key Holder who has made an early election in respect of restricted shares under the applicable Code provision (I.R.C. § 83(b)) should take its own advice before transferring them. Neither the Company nor an Investor gives tax advice to a Key Holder in connection with a transfer.

Section 21 - Records, Ledger Reconciliation and Reporting

The Company must record each transfer effected under this Agreement in its stock ledger within a reasonable period of the closing, must retain the Proposed Transfer Notice, the election notices, the joinders and the officer certificate for each transfer, and must retain the Board approvals given under Sections 7, 12 and 14 with its minute book.

The Company must reconcile its stock ledger to its equity award ledger at least quarterly, must identify each line on which the two do not agree, and must include the reconciliation with the capitalization delivery required by the Investors' Rights Agreement. A transfer may not be recorded in a manner that increases an unreconciled difference.

On the request of an Investor the Company must provide an extract of the ledger showing the shares held by the Key Holders, the transfers recorded during a stated period and the legends in force. The extract is provided for the purpose of monitoring compliance with this Agreement and is subject to the confidentiality obligation in Section 22.

Section 22 - Confidentiality of Transfer Information

The information in a Proposed Transfer Notice, including the identity of the Prospective Transferee and the price and terms of the proposed transfer, is confidential. The Company and each Investor may use it only for the purpose of deciding whether to exercise a right under this Agreement and of administering the transfer, and may not disclose it except as this Section permits.

The Company may disclose the information to its directors, officers, counsel, accountants, transfer agent and capitalization platform provider, and an Investor may disclose it to its officers, employees, professional advisers and to the general partner and manager of the fund through which it holds its shares, in each case where the recipient needs to know it and is bound by an equivalent obligation. Disclosure required by law or by a regulator is permitted.

No party may use the information in a Proposed Transfer Notice to solicit the Prospective Transferee to purchase shares from another holder, or to interfere with the proposed transfer otherwise than by exercising a right under this Agreement. The obligation in this Section survives the termination of this Agreement in respect of information received while it was in force.

Section 23 - Miscellaneous

The Company must maintain its stock ledger and its book-entry records so as to record the restrictions in this Agreement, and must not delegate that obligation to a transfer agent or platform provider in a manner that leaves the restrictions unrecorded. A failure by the Company to maintain a record does not permit a transfer this Agreement prohibits.

An Investor's rights under this Agreement pass to a transferee of its shares of Preferred Stock that executes a joinder, and are exercised by that transferee in proportion to the shares acquired. Holdings of affiliated Investors and of funds under common management are aggregated for every allocation and threshold in this Agreement, and those Investors may nominate one of their number to give and receive notices for all of them.

A notice under this Agreement must be given in writing and is effective on personal delivery, on confirmed electronic transmission, or on the business day after deposit with a nationally recognised overnight courier, addressed as shown on Schedule A or Schedule B. A Key Holder who is no longer an employee must maintain an address of record with the Company, and a notice sent to the address of record is effective even if returned undelivered.

This Agreement may be amended, and a provision of it waived, only with the written consent of the Company, the holders of a majority of the shares held by the Key Holders, and the Investors holding a majority of the shares of Capital Stock held by the Investors. An amendment that adversely affects one Key Holder differently from the other Key Holders requires the written consent of that Key Holder, and the put remedy in Section 6(g) may not be amended without the written consent of each Investor.